

Subject: URGENT – Pre-Action Protocol Letter (Judicial Review) – Extreme Safeguarding Risk – Zahmoul v MoJ/HMCTS
Date: Wednesday, November 19, 2025 at 5:37:45 PM Greenwich Mean Time
From: Nadia <nadia@rosekross.com>
To: david.lammy.mp@parliament.uk <david.lammy.mp@parliament.uk>, dr.jo.farrar@justice.gov.uk <dr.jo.farrar@justice.gov.uk>, nick.goodwin@justice.gov.uk <nick.goodwin@justice.gov.uk>
CC: justicecom@parliament.uk <justicecom@parliament.uk>
Priority: High
Attachments: Pre-Action Protocol Letter (Judicial Review) – Zahmoul..pdf

Dear Sir/Madam,

Please find attached my **Pre-Action Protocol Letter (Judicial Review)** dated **19 November 2025**, sent **BY EMAIL ONLY**, concerning:

- the failure of HMCTS and the Ministry of Justice to log, process, safeguard, escalate, or transmit serious criminal evidence submitted between April 2024 and May 2025; and
- the failure to safeguard and review Imerman devices containing source-level criminal evidence, including loss of chain of custody and safeguarding failures in respect of me as a disabled litigant.

The attached PAP is headed:

“UNDER NO CIRCUMSTANCES SHOULD PERMISSION BE DETERMINED PRIVATELY ON THE PAPERS.”

and sets out:

- the factual chronology;
- the legal grounds for Judicial Review (criminal-evidence handling, Imerman safeguarding failures, PSED breaches, and duty of candour);
- my Autism/PTSD-based need for a public, oral, transparent permission hearing; and
- the sunlight and preservation mechanisms required to prevent further suppression of evidence.

Because of email size limits, **Exhibit A will be sent in separate emails immediately following this one**. Exhibit A is a single exhibit, divided into sub-parts:

- A-1 – Criminal Referrals (Parts 1–3)
- A-2 – Conduct pleadings & section 25 statement extracts (criminal-evidence warnings)
- A-3 – Imerman correspondence (22 June 2022 and 25 February 2022)
- A-4 – Autism Assessment Report (1 July 2025)
- A-5 – Selected transmission emails

For the avoidance of doubt, all of these parts form **one continuous Exhibit A** to the enclosed PAP.

In accordance with the Pre-Action Protocol for Judicial Review, I require a **full, substantive response** to the attached PAP by **16:00 (UK time) on Monday 24 November 2025**.

If I do not receive a full response by that deadline, I will:

- issue Judicial Review proceedings without further notice,
- seek urgent interim relief, and
- rely on any failure to respond, or partial response, as further evidence of maladministration and breach of public law duties.

Given the extreme safeguarding risk, the ongoing IRS:CI criminal investigation, and the history of administrative suppression set out in the attachments, I request that this email and all attachments are:

1. Logged immediately;
2. Acknowledged promptly; and
3. Escalated to appropriate senior officials without delay.

Please address all correspondence and your full substantive response to this PAP to:

Email: nadia@rosekross.com

Address: **Withheld for safety reasons**

Yours faithfully,

Nadia Zahmoul

nadia@rosekross.com

Attachment:

- *Pre-Action Protocol Letter (Judicial Review) – Zahmoul.pdf*